translated into Persian. This was followed till the reign of Aurangazeb when it was replaced by Fatawa-i-Alamgiri written in 1670.

c. Judiciary during Modern period

The Indian judicial system and laws we have today was formed by the British during the colonial rule in the country. The beginning of Indian codified common law is traced back to 1727 (Under the Charter of 1726) when the Mayor's court in Madras, Bombay and Calcutta were established by the East India Company. Regulating Act of 1773 made provision for the formation of Supreme Court. A Supreme Court was established for the first time at Fort Williams in Calcutta. Sir Elijah Imphey was appointed as chief justice of that court. In 1801 and 1824 Supreme Courts were established in Madras and Bombay. These Supreme Courts functioned until 1862 when they were replaced by the High Courts at all the three places.

Warren Hasting, established Mofussil Diwani Adalat to resolve civil disputes and Mofussil Fauzdari Adalat to resolve criminal disputes. The appeals from these courts could be taken to Sadar Diwani Adalat (civil court of appeal) and Sadar Nizamat Adalat (criminal court of appeal). Lord Cornwallis reorganised the civil and criminal judicial system. Under Cornwallis, the District Fauzdari court was abolished and Circuit Court was setup at Calcutta, Dacca, Murshidabad and Patna. During the period of William Bentinck four Circuit courts were abolished.

The Calcutta High Court is the oldest High court in the country, established in 1862, whereas the Allahabad High Court is the largest Court.

Sadar Diwani Adalat and Sadar Nizamat Adalat were established at Allahabad. A law commission was setup by Macaulay, which codified the Indian Laws. On the basis of this Commission, A Civil Procedure Code of 1859, An Indian Penal Code of 1860, and a Criminal Procedure Code 1861 were prepared. The Government of India Act 1935 created Federal Court. It was not the highest court as appeals could lie in certain situation to the Privy Council in England. The Jurisdiction of Privy council was abolished by the Abolition of the Privy Council Jurisdiction Act, 1949. The Supreme Court of India was inaugurated on 28 January 1950.

Judiciary and constitution

India framed its own Constitution. Among the noble aims and objectives of the Constitution, the founding fathers accorded the highest place to 'Justice'. During British period, Indian had neither law nor courts of their own and both the law and courts had been designed for the Colonial Power. The Constituent Assembly members therefore tried to ensure the independence of the Courts with full power of Judicial review. Supreme Court Rules, 1966 are framed under Article 145 of the Constitution to regulate the practice and procedure of the Supreme Court. The Supreme Court of India is the highest court of the land as established by Part V ('The Union') under Chapter IV titled 'The Union Judiciary' and Part VI ('The State') under Chapter VI titled 'Subordinate Courts' of the Constitution of India. Articles 124 to 147 of the Constitution of India lay down the composition and jurisdiction of the Supreme Court of India.



The first political philosopher, who propounded the idea of an independent judiciary, was Montesquieu, the famous French philosopher. He believed in the theory of separation of powers of the three branches of the Government - Legislature, Executive and Judiciary.

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